

SENATE No. 892

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to alleviate skyrocketing consumer health care costs.

PETITION OF:

NAME:

Mark C. Montigny

DISTRICT/ADDRESS:

Second Bristol and Plymouth

SENATE No. 892

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 892) of Mark C. Montigny for legislation to alleviate skyrocketing consumer health care costs. Health Care Financing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 787 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to alleviate skyrocketing consumer health care costs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 10 of chapter 6D of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by striking subsection (q) and inserting in place thereof the following:-

3 “(q) If the commission determines that a health care entity has: (i) willfully neglected to
4 file a performance improvement plan with the commission within 45 days as required under
5 subsection (d); (ii) failed to file an acceptable performance improvement plan in good faith with
6 the commission; (iii) failed to implement the performance improvement plan in good faith; or
7 (iv) knowingly failed to provide information required by this section to the commission or that
8 knowingly falsifies the same, the commission shall assess a civil penalty to the health care entity
9 of \$500,000 per day.”.